Department of Veterans Affairs

35% EXEMPTION REQUEST FROM 85/15 REPORTING REQUIREMENT
GENERAL INFORMATION

Use this VA Form 22-10216 to request exemption of the routine reporting requirements of the 85/15 Rule as required by Title 38 United States Code (U.S.C.) 3680A(d) and 38 Code of Federal Regulations (CFR) 21.4201.

In order to be eligible for this exemption, your Educational & Training Institution's number of VA beneficiary students in all programs approved for GI Bill must not exceed 35% of the total enrollment at the educational institution (computed separately for the main campus and any separately approved branch campuses of the institution).

ACCREDITED SCHOOLS: To request the 35% Exemption, a copy of this form must be uploaded to the VA Education File Upload Portal, which can be accessed from any browser at **https://www.my.va.gov/EducationFileUploads/**.

NONACCREDITED SCHOOLS: To request the 35% Exemption, a copy of this form **AND** a completed VA Form 22-10215 (Statement of Assurance of Compliance with 85 Percent Enrollment Ratios) for the corresponding term or enrollment period must be uploaded to the VA Education File Upload Portal, which can be accessed from any browser at **https://www.my.va.gov/EducationFileUploads**.

NOTE FOR NONACCREDITED SCHOOLS ONLY: This exemption applies only to the submission of routine reports. Your Educational & Training Institution (ETI) remains obligated to maintain compliance with the provisions of the 85/15 Rule for all programs approved to receive GI Bill ® benefits and must provide 85/15 calculations for any term requested by a VA employee or State Approving Agency representative.

Educational & Training Institutions must submit the exemption request:

- No later than 30 days after the beginning of the first term for which the school wants the exemption to apply if the school is organized on a standard-length term basis.
- No later than 30 days after the beginning of the first non-standard-length term for which the school wishes the exemption to apply if the school is organized on a non-standard-term basis.

VA Beneficiary. Any student who is receiving any amount of payment from the VA for their training (such as through GI Bill benefits or Veteran Readiness and Employment benefits).

For additional guidance on the 85/15 Rule see the School Certifying Official Handbook.

INFORMATION AND INSTRUCTIONS FOR COMPLETING THE 35% EXEMPTION REQUEST

VA EDUCATION SERVICE HELP AVAILABLE - If you need help calculating your facility's potential eligibility for the 35% Exemption, or have questions concerning the 85/15 Rule, contact the **Education Liaison Representative** of jurisdiction.

NOTE: The numbers on the instructions match the item numbers on the form. Items not shown are self-explanatory.

BLOCK 1. Provide the full name of your institution as listed on the Web Enabled Approval Management System (WEAMS) 22-1998 report.

BLOCK 2. Provide your institution's VA assigned facility code. Do not provide any spaces or hyphens in this section.

Note: Separate exemption requests (and calculations) are required for the main campus and any branch campuses with separate administrative capability seeking the 35% Exemption. Branches and extensions without separate administrative capability are part of the main or branch campus under which that extension is approved.

BLOCK 4C - VA Beneficiary Student Percentage. The result of students provided in the “Total Number of VA Beneficiary Students” column divided by the “Total Number of Students” column.

35% CALCULATION EXAMPLE:

Total number of students enrolled at your school: 1,000
Total number of VA beneficiaries enrolled at your school: 250

To calculate the percentage for 35% Exemption:
Divide the number of VA beneficiaries (250) by the total number of enrolled students (1,000).

250 ÷ 1,000 = .25

To convert the quotient to a percentage, move the decimal point two spaces to the right and add the % sign after the last digit:

.25 = 25%

BLOCK 4D - Date of Calculation. Provide the date that 85/15 calculation was completed. This must be within 30 days of the term start date.

OMB Control No. 2900-0896
Respondent Burden: 30 minutes
Expiration Date: 01/31/2028

Department of Veterans Affairs

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INSTRUCTIONS: Read the Privacy Act and Respondent Burden on this page before completing the form.

1. INSTITUTION NAME	2. FACILITY CODE	3. TERM START DATE

4. 35% EXEMPTION CALCULATION

The total number of beneficiaries receiving assistance under all chapters of Title 38 and chapter 1606 of Title 10, U.S. Code at this institution is equal to or less than 35 percent of our total student enrollment, as identified in the calculation provided below.
For the purpose of the 35% Exemption, determine the percentage of VA Beneficiary students of the ETI total student population.

NOTE: When calculating 85/15 compliance, please refer to the specific instructions noted on *Statement of Assurance of Compliance with 85 Percent Enrollment Ratios*, VA Form 22-10215.

A. TOTAL VA BENEFICIARY STUDENTS	B. TOTAL NUMBER OF STUDENTS	C. VA BENEFICIARY STUDENT PERCENTAGE	D. DATE OF CALCULATION

☐ **FOR NON-ACCREDITED SCHOOLS**: When calculating 85/15 compliance, please refer to the specific instructions noted on *Statement of Assurance of Compliance with 85 Percent Enrollment Ratios,* VA Form 22-10215. Check this box if VA Form 22-10215 is attached.

I HEREBY CERTIFY THAT the calculations listed above are true and correct in content and policy.

5. SCHOOL OFFICIAL PRINTED NAME	6. SCHOOL OFFICIAL TITLE
7. SIGNATURE OF SCHOOL OFFICIAL	8. DATE SIGNED (MM/DD/YYYY)

PRIVACY ACT NOTICE: VA will not disclose information collected on this form to any source other than what has been authorized under the Privacy Act of 1974 or Title 38, Code of Federal Regulations 1.576 for routine uses as identified in the VA system of records, 58VA21/22/28, Compensation, Pension, Education, Veteran Readiness and Employment Records - VA, published in the Federal Register. An example of a routine use (e.g., VA sends educational forms or letters with a Veteran's identifying information to the Veteran's school or training establishment to (1) assist the Veteran in the completion of claims forms or (2) for VA to obtain further information as may be necessary from the school for VA to properly process the Veteran's education claim or to monitor his or her progress during training). Your obligation to respond is required to obtain or retain education benefits. The responses you provide are considered confidential (38 U.S.C. 5701). Any information provided by applicants, recipients, and others is subject to verification through computer matching programs with other agencies.

RESPONDENT BURDEN: An agency may not conduct or sponsor, and a person is not required to respond to, a collection of information unless it displays a currently valid OMB control number. The OMB control number for this project is 2900-0896, and it expires 01/31/2028. Public reporting burden for this collection of information is estimated to average 30 minutes per respondent, per year, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate and any other aspect of this collection of information, including suggestions for reducing the burden, to VA Reports Clearance Officer at **VACOPaperworkReduAct@va.gov**. Please refer to OMB Control No. 2900-0896 in any correspondence. Do not send your completed VA Form 22-10216 to this email address.